

Attachment 2
U.S. Customs and Border Protection
Sole Source Justification (SSJ) - RFO Subpart 8.4 and GSAR 538.7104-3
For Orders or BPAs Exceeding the SAT

Date: 03/31/2026

PR Number: N/A

This acquisition is conducted under the authority of the Multiple-Award Schedule Program, 41 U.S.C. 152(3), Competitive Procedures, and 40 U.S.C. 501, Services for Executive Agencies.¹

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), U.S. Customs and Border Protection (CBP), Office of Acquisition (OA), Transportation Program, proposes to extend the period of performance of a task order pursuant to the ordering procedures established by the General Services Administration and intends to proceed with this action in accordance with Government Services Acquisition Manual/Regulation (GSAR) 538.7104-3, Sole Source Justifications, and HSAM 3008.401-71, Sole source justifications.

2. Nature and/or description of the action being approved.

CBP intends to place an order on a sole source basis in accordance with GSAR 538.7104-3 for Transportation and Guard services to ISS Action Inc., 204 E. McKenzie St., Unit E6, Punta Gorda, FL. 33950. It will be a firm fixed price task order modification with an estimated total value of [REDACTED]. The price breakout is below:

<u>Period</u>		<u>Unit Price</u>		<u>Total</u>
Option period 2	3 days	[REDACTED]	Total	[REDACTED]

The value of the task order is increasing from [REDACTED] by [REDACTED] to [REDACTED].

3. Description of supplies or services required to meet the agency's need.

The requirement is to provide transportation and guard services required with certified, armed transportation officers and vehicles outfitted with detention packages, camera systems and communication systems. CBP has a highly technical requirement which entails a significant amount of preparation and ramp up to be able to fully operate. A task order modification will be awarded against GSA schedule contract, GS-07F-072GA, to contractor ISS Action Inc. who is already certified, licensed, and operating the ground transportation and guard services as required by CBP.

CBP requires Armed Ground Transportation and Facility Guard Services to support the mission along the United States Southwest Border within the Arizona and California Corridor (ACC). The ACC encompasses four U.S. Border Patrol (USBP) sectors:

¹ In this document, citations to RFO Part 8 are citations specifically to Federal Acquisition Regulation (FAR) Class Deviation 25-20 for FAR Part 8, which was issued as part of the Revolutionary FAR Overhaul (RFO) implemented in response to Executive Order 14275, *Restoring Common Sense to Federal Procurement*, signed April 15, 2025.

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- o Tucson Border Patrol Sector
- o Yuma Border Patrol Sector
- o El Centro Border Patrol Sector
- o San Diego Border Patrol Sector

As a critical part of its mission, CBP must provide detainee ground transportation, (armed/unarmed) and medical and facility guard service for the movement of detainees intercepted and/or processed within the Southwest ACC Border.

4. Authority and supporting rationale.

- GSAR 538.7104-3(b)(1)(ii): Only one source is capable of providing the products, services, or solution required at the level of quality required because the products, services, or solutions are unique or highly specialized.

CBP currently relies on a 2025 Bridge task order with ISS Action which remains in effect through March 31, 2026, to provide critical armed ground transportation and guard services along the Southwest Border (SWB). These services are essential to safely and efficiently move and secure detainees, and to prevent the diversion of hundreds of U.S. Border Patrol (USBP) Agents from mission-critical law enforcement and border security duties. This Bridge task order was established to continue to provide these critical armed ground transportation and guard services when the 2019 Blanket Purchase Agreement (BPA) with ISS Action expired September 7, 2025.

CBP relies heavily on its ground transportation contractor to provide for the safe and efficient movement of detainees along the SWB. A lapse in ground transportation and guard services would require hundreds of Agents to be removed from their mission critical duties to be reassigned to work on transporting and guarding detainees. CBP lacks the number of USBP personnel to be able to reassign to the ground transportation task order. Additionally, USBP does not have the Government vehicles or licensed operator/Agent resources necessary to safely and securely transport detainees, even at the lower apprehension numbers.

This extension will rely upon the exception at GSAR 538.7104-3(b)(1)(ii) because market research performed reflects there are no immediately available alternate contractors that have the capacity or the availability to provide all the required materials to perform the task order, including: vehicles properly outfitted with detention packages, camera systems and communication systems; and approximately 130 fully trained, armed, uniformed, Commercial Driver's License (CDL) drivers across the four (4) sectors.

The extension is required for "Necessary for Safety of Human Life or Protection of Property". Suspending or delaying these services during a funding lapse would create an immediate and unacceptable risk of harm to detainees, CBP personnel, government property, most importantly the American public.